

Option Grant Agreement

Name of Participant: Franziska Geiger
Address of Participant: Naglerwiesenstrasse 11
8049 Zürich
Switzerland
Grant Date: 1 January 2024
Number of Depositary Receipts: 1,204
Exercise Price: EUR 0.01 per Depositary Receipt
Alternative Vesting Arrangements
(if deviating from the Plan): _____
Covenant not to Compete Period (if
deviating from the Plan): _____
Details for notices: Name: Franziska Geiger
Address: *same as Address of Participant above*
E-mail: franzigeiger94@gmail.com

This grant agreement (the “**Grant Agreement**”) is entered into between the individual whose name appears above (the “**Participant**”), Cradle Bio Holding B.V. (the “**Company**”) and Stichting Administratiekantoor Cradle Bio Holding ESOP (the “**Foundation**”) and is part of the Employee Stock Option Plan (the “**Plan**”), attached hereto as **Annex 1**.

1. INTERPRETATION AND CONSTRUCTION

- 1.1 The provisions of the Plan are hereby incorporated into this Grant Agreement by reference.
- 1.2 All capitalized terms used, but not otherwise defined herein, shall have the meanings given to them in the Plan.
- 1.3 In the event of a conflict or ambiguity between any term or provision contained in this Grant Agreement and a term or provision of the other Plan Documentation, this Grant Agreement will govern and prevail.

2. GRANTING OF OPTION

- 2.1 Subject to the terms and conditions of this Grant Agreement and the Plan, the Foundation hereby grants to the Participant an option to acquire the number of Depositary Receipts as set out above, which the Participant hereby accepts.
- 2.2 The Exercise Price (payable by the Participant for each Depositary Receipt at the time of issuance) is mentioned above and shall be paid by the Participant in accordance with Clause 7.3(b) of the Plan to the following bank account of the Company (or such other bank account as may be notified by the Company to the Participant):

Account holder: Cradle Bio Holding B.V.
IBAN: NL56 RABO 0375 4454 04
Bank: Rabobank Nederland
BIC/SWIFT: RABONL2U
Reference: Exercise Price [*name participant*]

3. REPRESENTATIONS AND WARRANTIES; COVENANTS

3.1 The Participant represents and warrants that he has received, read and understood copies of the following Plan Documentation (provided to the Participants in the English language) and that he is aware of and fully understands the content of such documents:

- (a) the Plan;
- (b) the articles of association of the Foundation;
- (c) the Terms and Conditions; and
- (d) the articles of association of the Company.

3.2 The Participant hereby confirms and acknowledges that he or she has carefully reviewed the provisions of the Plan Documentation, and hereby agrees to the terms and conditions of the Plan Documentation (and in particular the discretion of the Board, the Company and the Foundation under the Plan) and to be bound by the provisions thereof, which shall form an integral part of this Grant Agreement.

3.3 Exit obligations

In the event of an Exit and provided that the Participant is a Participant under the Plan, he will be required to give certain warranties and covenants as are reasonable and customary, including (without limitation) warranties regarding title and capacity, as well as “best knowledge” warranties in respect of the business of the Group.

4. TAXES AND SOCIAL SECURITY PAYMENTS ON THE GRANTING OF OPTIONS

4.1 The Participant hereby agrees that all Tax-Related Items due in respect of the grant, exercise, transfer or possession of the Options and the Depositary Receipts by the Participant shall be for the account of and borne by the Participant or his/her legal successor. In the event that the Company, any other member of the Group or the Foundation is required to withhold any Tax-Related Item as a result of the Plan or payments made to the Participant pursuant thereto and hereto, the Participant shall pay or make adequate arrangements satisfactory to the Company to satisfy all withholding and payment on account obligations of the Company, the relevant other member of the Group or the Foundation. The Participant indemnifies the Company, each other member of the Group and the Foundation against any (retro-active) claims from any tax authorities in respect of (alleged) failure to withhold a sufficient amount of any Tax-Related Item in relation to the issue and/or possession of any and the payment of any Proceeds. The Participant agrees to allow the Company, any other member of the Group and the Foundation to withhold (to the extent legally possible) all applicable Tax-Related Items legally payable by the Participant from the Participant's salary, fees or remuneration due by the Company, any member of the Group and/or the Foundation (whether under any Employment Agreement or otherwise) or from any payments to be made by the Company, any other member of the Group or the Foundation under the Plan.

4.2 In the event an Option is forfeited or expires for whatever reason, the Participant shall not be compensated for any Tax-Related Items (to be) paid in connection with that Option or otherwise.

4.3 The Participant has reviewed the tax consequences of the transactions contemplated by this Grant Agreement with his own tax advisor(s). The Participant is relying solely on such advisor(s) and not on any statement or representations of the Company or any of the advisors of the Company. The Participant understands and agrees that he (and not the Company or any other member of the Group) shall be responsible for any personal tax liability that may arise as a result of the transactions contemplated by this Grant Agreement and the Plan.

5. ADDITIONAL WARRANTIES AND ACKNOWLEDGMENTS BY THE PARTICIPANT

5.1 The Participant hereby represents, warrants, acknowledges, agrees and undertakes to the Company, each other member of the Group and the Foundation that:

- (a) the Proceeds and the Depositary Receipts are an extraordinary item that do not constitute compensation of any kind for services of any kind rendered to the Group and which is outside the scope of an employment relationship or an employment agreement;
- (b) the Proceeds and the Depositary Receipts are not part of normal or expected compensation or salary for any purposes, including, but not limited to, calculating any severance, resignation, termination, redundancy, end of service payments, bonuses, long-service awards, pension or retirement benefits or similar payments;
- (c) neither the Options, the Depositary Receipts nor the Proceeds or any provision of this Grant Agreement and/or the Plan confers upon the Participant any right (legal or otherwise) to be continued in the employment, service, consultancy or otherwise of any member of the Group; the Group expressly reserves the right to discharge any employee for any reason or no reason;
- (d) no claim or entitlement to compensation or damages shall arise from the termination of this Plan or diminution in value of the Options, ESOP Shares or Depositary Receipts resulting there from and the Participant shall release the Company, the Foundation and all other members of the Group from any such claim that may arise. If, notwithstanding the foregoing, any such claim is found by a court of competent jurisdiction to have arisen, then, by becoming a party to this Grant Agreement and adhering to the Plan, the Participant shall be deemed irrevocably to have waived his entitlement to pursue such claim;
- (e) neither the Company nor any other member of the Group is providing any tax, legal or financial advice or making any recommendations regarding the Participant entering into this Grant Agreement. The Participant is hereby advised to consult with his own personal tax, legal and financial advisor(s);
- (f) the establishment of the Plan, the granting of the Options and the issuance of Depositary Receipts, the payment of any benefits or any action of the Company, the Board or any other person in connection with the Plan shall not be held or construed to confer upon the Participant any right (legal or otherwise) to the continued grant or transfer of Options, Depositary Receipts or similar rights. The granting of Options and issuance of Depositary Receipts shall constitute voluntary contributions, even where repeatedly made. In this regard, the Board has the right to discontinue any such grant of Options at any time without any notice and without any liability whatsoever (other than its obligations under the Plan Documentation);
- (g) all Options granted under the Plan, shall be personal to the Participant and are subject to the transfer restrictions of Clause 14.4 of the Plan; and
- (h) the Participant is aware and agrees that the Foundation may be required (for example pursuant to “drag-along” undertakings), to sell and transfer some or all of its Shares, including (without limitation) if (some of) the other Shareholders of the Company decide to sell some or all of their Shares in the Company to a third party, all on the terms of the shareholders agreement related to the Company. In the event that the Foundation sells and transfers any Shares, for example as a result of the exercise of a “drag-along”, the Foundation shall distribute to the Participant in respect of each of the relevant Depositary Receipts issued by the Foundation and corresponding to such Shares, the net proceeds of

such sale and transfer received by the Foundation, as well as any proceeds received by the Foundation in respect of deferred payments that have been released or have otherwise become due payable in respect of such sale and transfer.

6. POWER OF ATTORNEY TO EXECUTE DOCUMENTS ON BEHALF OF THE PARTICIPANT

6.1 The Participant herewith unconditionally and irrevocably appoints, for as long as the Participant holds Options or Depositary Receipts, the Company (the “**Attorney**”) as his/her true and lawful attorney-in-fact to perform the following legal actions on his behalf:

- (a) the entry into and the approval, execution and delivery of such documents as the Attorney shall consider necessary in connection with the grant of Options or the issue/transfer of Depositary Receipts pursuant to this Grant Agreement and the other Plan Documentation; and
- (b) to perform all such other acts and approve, execute and deliver on his behalf all such documentation which may be conducive or which the Attorney deems necessary or required in connection with the implementation of the Plan and the Participant's participation therein and termination of such participation, in accordance with the Plan.

6.2 The Participant hereby confirms that:

- (a) the power of attorney conferred by this Clause 7 shall include the power of substitution and comprises the approval that the Attorney acts on behalf of any other party involved in the aforementioned (legal) acts (including the Participant's counterparty);
- (b) the Participant shall hold the Attorney, and any substitute attorneys appointed by it, harmless and shall indemnify them against claims of third parties in connection with the power of attorney conferred by this Grant Agreement and the (legal) acts performed on the basis thereof. The indemnification shall include all damages and costs suffered or incurred by the Attorney or such substitute attorneys in connection with such claims; and
- (c) the power of attorney conferred by this Clause 7 has been made also for the benefit of any counterparty of the Participant and shall be irrevocable.

7. DATA PRIVACY

- 7.1 By signing this Grant Agreement, the Participant acknowledges that the Company and the Foundation may, for the purpose of implementation, execution, administration and management of the participation by the Participant in the Plan, collect, use, process, and transfer personal data of the Participant, as described in this paragraph. The Participant understands and agrees that the Company and the Foundation may process relevant personal information about the Participant, including (without limitation) the Participant's name, home address and telephone number, date of birth and details of the Options granted to the Participant (the "**Data**").
- 7.2 For the abovementioned purpose and to comply with its statutory obligations, the Company and the Foundation may also (further) transfer - in electronic or any other form - the Data to any of their affiliates and/or to third parties. The Participant understands and agrees that these recipients may be located in the European Economic Area, or elsewhere, and that the recipient's country may have different data privacy laws and protections than those applicable in the jurisdictions of the Company and the Foundation. Where necessary, the Company or the Foundation shall request the relevant permits and make the applicable notifications with the concerned authorities.
- 7.3 The Company and the Foundation shall process the Data in an adequate and careful manner. Moreover, the Company and the Foundation shall take appropriate technical and organizational measures to safeguard the Data and to ensure the confidentiality of the Data of the Participant, whether the processing shall take place in the European Union, the United States or somewhere else.
- 7.4 The Participant further acknowledges and agrees that the Company and the Foundation may retain the Data in the Participant's personnel, or equivalent, file. In accordance with the General Data Protection Regulation (*AVG*), the Company and the Foundation shall not keep the personal data of the Participant longer than necessary for achieving the purposes for which they were processed.

8. CONFIDENTIALITY

Each of the Company and the Participant agrees not to disclose (directly or indirectly) to any party the existence or contents of the Plan and this Grant Agreement except to the Participant's professional advisers, the Participant's spouse or registered civil partner (on the basis that each of the foregoing persons agrees to keep the same confidential). However, nothing in this Clause 8 shall prevent the Participant from disclosing the existence or contents of the Plan or supplying a copy of this Grant Agreement to any revenue authority or any court or tribunal of competent jurisdiction, or as otherwise required by law.

9. NOTICES

- 9.1 Any notice or communication to be given to the Participant, the Company or the Foundation may be personally delivered or sent by fax, by ordinary post by email or any other form of electronic communication to the address and email address:

Participant:

as set forth at the beginning of this Grant Agreement

The Company/Foundation:

Stichting Administratiekantoor Cradle Bio Holding ESOP
Attn: the board of directors
Alexander Fleminglaan 1
2613 AX Delft, the Netherlands

E-mail: peopleops@cradle.bio

or such other address or e-mail address as may be notified by the relevant party to the other parties in accordance with this Clause 9.

- 9.2 Where a notice is delivered personally or by facsimile or by email or other form of electronic communication, it shall be deemed to have been received immediately. Where a notice or communication is sent by post, it shall be deemed to have been received 72 (seventy-two) hours after the same was put into the post properly addressed and stamped.

10. MISCELLANEOUS

- 10.1 Unless provided otherwise in this Grant Agreement, the parties shall each pay their own costs, charges and expenses in relation to the negotiation, execution and implementation of this Grant Agreement. The costs related to the preparation of this Grant Agreement and the documents referred to herein shall be borne by the Company.
- 10.2 Any amendment, supplement or restatement of this Grant Agreement is not valid unless and until it is in writing and has been signed by or on behalf of each of the parties.
- 10.3 If part of this Grant Agreement is or becomes invalid or non-binding, the parties shall remain bound to the remaining part. In that event, the parties shall replace the invalid or non-binding part by provisions that are valid and binding and that have, to the greatest extent possible, a similar effect as the invalid or non-binding part, given the contents and purpose of this Grant Agreement.
- 10.4 This Grant Agreement (together with all documents referred to in it and executed at the date hereof) constitutes the entire agreement and understanding of the parties with respect to its subject matter and replaces and supersedes all prior agreements, arrangements, undertakings or statements regarding such subject matter.
- 10.5 None of the rights and obligations under this Grant Agreement can be assigned or transferred by the Participant without the prior written consent of the Company. A limitation of the transferability of rights of claim has effect both under the law of obligations and under property law (*goederenrechtelijk effect*) as described in section 3:83(2) DCC.
- 10.6 Except as otherwise provided for in this Grant Agreement, each party waives, to the fullest extent permitted by law, its rights:
- (d) to rescind (*ontbinden*) this Grant Agreement in whole or in part pursuant to section 6:265 DCC or on any other ground under Dutch law or under any other applicable law; and
 - (e) to nullify (*vernietigen*) or amend (*wijzigen*) this Grant Agreement pursuant to sections 6:228 and/or 6:230 DCC or on any other ground under Dutch law or under any other applicable law.

11. GOVERNING LAW AND COMPETENT COURT

- 11.1 This Grant Agreement shall be governed by and must be interpreted according to the laws of the Netherlands.
- 11.2 Any dispute arising out of or in connection with this Grant Agreement is to be submitted to the exclusive jurisdiction of the competent Court in Amsterdam, the Netherlands, subject to appeal (*hoger beroep*) and appeal to the Supreme Court (*cassatie*) as provided by law.

12. COUNTERPARTS

This Grant Agreement shall be executed in 2 (two) original copies to be kept with each of the Participant and the Foundation.

THUS duly signed on **24 Jan 2024** by and between:

NAME: Franziska Geiger

E-signed in Ledgy

Signed for and on behalf of **Cradle Bio Holding B.V.**

By: Joseph Pieter Stefanus van Grieken

Title: Director

E-signed in Ledgy

Signed for and on behalf of **Stichting Administratiekantoor Cradle Bio Holding ESOP**

By: Joseph Pieter Stefanus van Grieken

Title: Director

E-signed in Ledgy

ANNEX 1

THE PLAN

[to be attached separately]

Signatures

Signed for

Cradle Bio Holding B.V.

Initiated by

Luba Protopopova

Open in Ledgy

<https://app.ledgy.com/signature/ABoLFEE5HoGzmukv8>

Franziska Geiger

23 Jan 2024



Ledgy Standard Electronic Signature

Certified under European eIDAS law

Joseph Pieter Stefanus van Grieken

24 Jan 2024



Ledgy Standard Electronic Signature

Certified under European eIDAS law